tive, and cannot be made effective, to prevent crop damage on such area.

§ 6.86 *Action following investigation.* Upon receipt of a report and recommendations based upon an investigation conducted under § 6.84 and upon a determination by the Secretary that the applicant meets the qualifications for receiving grain, the Secretary will determine the quantity of grain to be made available, either bagged or in bulk, the means of transportation, and the point of delivery in the vicinity of the crop damage. Before receiving delivery of such grain the applicant shall execute and deliver to any officer authorized to enforce this part written assurances as follows:

(a) That grain made available to him under this part will be used exclusively for the prevention and abatement of crop damage by migratory waterfowl and that no portion of such grain will be sold, donated, exchanged, or used as feed for livestock or other domestic animals or for any other purpose.

(b) That consent is granted to any officer authorized to enforce this part to inspect, supervise or direct the placement and distribution of grain made available under this part for the prevention of crop damage whenever such authorized officer shall be instructed to conduct such supervisory activities;

(c) That free and unrestricted access to the premises on which feeding operations have been or are to be conducted is permitted at all reasonable times by any officer authorized to enforce this part and that such information as may be required by the officer will promptly be furnished; and

(d) That he will not take, nor permit his agents, employees, invitees, or other persons under his control to take, migratory game birds on or over any lands or waters subject to his control during any time when grain made available under this part is placed, exposed, deposited, distributed, scattered, or present upon such lands or waters, nor during a period of 10 days immediately following the consumption or removal of such grain from such lands or waters.

§ 6.87 *Compliance with other regulations.* Nothing in §§ 6.81 to 6.86, inclusive, shall be construed to supersede or modify § 6.3, nor shall anything in said sections be construed to permit transportation, distribution, or use of grain contrary to any applicable health, inspection, quarantine, game protection, or other requirements imposed by law or by regulations of authorized Federal or State agencies and local governmental bodies.

[F. R. Doc. 57-6756; Filed, Aug. 23, 1957; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1469]

[Idaho 07359]

IDAHO

REVOKING EXECUTIVE ORDER NO. 1297 OF FEBRUARY 13, 1911, WHICH RESERVED LANDS FOR MILITARY PURPOSES FOR THE PROTECTION OF THE WATER SUPPLY OF BOISE BARRACKS

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive Order of February 13, 1911, reserving the following-described lands for military purposes for the protection of the water supply of Boise Barracks, which was revoked in part of Public Land Order No. 777 of December 29, 1951, is hereby revoked in its entirety. The following-described lands are released from withdrawal by this order:

BOISE MERIDIAN

T. 3 N., R. 3 E.,
Sec. 5, SE¼NE¼, and lot 4;
Sec. 6, lots 1 and 2.
T. 4 N., R. 3 E.,
Secs. 20, 28, 29, and 30;
Sec. 31, all excepting 20.596 acres in patented mining claim;
Sec. 32;
Sec. 33, N½NW¼, SW¼NW¼.

The areas described aggregate 3,963.964 acres.

2. The lands lie northeast of the City of Boise, Idaho, on the drainages of Cottonwood Creek and Crane Gulch. An improved county road crosses Sections 20, 29 and 30. This road is open during early spring, summer and fall months. There are several unimproved dirt roads leading up the canyons for short distances. The higher areas not adjacent to the improved road are inaccessible during the winter months.

3. The lands support a vegetative cover of big sage, native grasses, cheat grass, and weeds, with small areas of willow on the small streams and springs. The soils are of decomposed granite of varying depths. The south portion of the area has been burned over and the regrowth of cheat grass and weeds constitute a serious fire hazard.

4. No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

5. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

(a) Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m., on September 24, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on December 24, 1957, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m., on December 24, 1957, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

6. The lands will be open to applications and offers under the mineral-leasing laws, and to location under the United States mining laws, beginning at 10:00 a. m., on December 24, 1957.

7. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Boise, Idaho.

ROGER C. ERNST,
Assistant Secretary of the Interior

AUGUST 19, 1957.

[F. R. Doc. 57-6969; Filed, Aug. 23, 1957; 8:45 a. m.]